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HUMAN RIGHTS LAW

THE RIGHT TO FREEDOM OF THOUGHT, CONSCIENCE AND RELIGION

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INTRODUCTION

The right to freedom of thought, conscience and religion is one of the most important but controversy generating right in the world. This right provides that a person should have the right and the freedom to choose what he believes and how he worships. Historically, the violation of this right was a common means of oppression of peoples. Monarchs in Europe and other parts of the world insisted on one religion in their kingdoms and killed those who refused to accept the religion. In modern times, men began to recognize the importance of respecting the right to freedom of religion. The **Universal Declaration of Human Rights** provides that:

“Everyone has the right to freedom of thought, conscience and religion; this right includes the freedom to change his religion or belief, and freedom, either alone or in community with others and in public or private to manifest his religion or belief in teaching, practice, worship and observance”.

Article 8 of the **African Charter on Human and People’s Rights** provides that:

“Freedom of conscience, the profession and free practice of religion shall be guaranteed. No one may, subject to law and order, be subjected to measures restricting the exercise of these freedoms”.

THE RIGHT TO FREEDOM, THOUGHT, CONSCIENCE AND RELIGION IN NIGERIA

In Nigeria, the Right to Freedom of Thought, Conscience and Religion is protected under section **38 of the 1999 Constitution**.

Section 38(1) of the 1999 Constitution provides that:

“Every person shall be entitled to freedom of thought, conscience and religion, including freedom to change his religion or belief, and freedom (either alone or in community with others and in public or in private) to manifest and propagate his religion or belief in worship, teaching, practice and observance”.

This section provides the following elements of the Right to Freedom of Thought, Conscience and Religion:

- Freedom of thought and conscience
- Freedom of religion
- Freedom to change religion or belief
- Freedom to manifest or propagate his religion or belief

FREEDOM OF THOUGHT AND CONSCIENCE

Thought and conscience refers to things people object to on the basis of their religion and faith. Some people object to swearing and oath taking on the basis of their religion or faith. Some other people object to gambling and playing the lottery. Where a person objects to an act on the basis of his faith, he is said to be a conscientious objector.

In the *Zambian Case of KACHASU V ATTORNEY GENERAL OF ZAMBIA*, a student was required to salute the national flag and sing the national anthem. He refused because he was a Jehovah Witness. He was expelled from school. It was held that this was a violation of his right to Freedom of Thought and Conscience as he was a conscientious objector.

Similarly, in Nigeria, in the case of *MEDICAL AND DENTAL PRACTITIONERS DISCIPLINARY TRIBUNAL V OKONKWO* the Supreme Court of Nigeria upheld the right of a Jehovah Witness to object to blood transfusion and held that a medical doctor had no right to overrule the patient's objection on public interest grounds. The Supreme Court noted that:

The right to freedom of thought, conscience or religion implies a right not to be prevented without lawful justification from choosing the course of one's life, fashioned on what one believes, and the right not to be coerced into acting contrary to one's belief.

In *NKPA V NKUME* the plaintiffs were members of the Jehovah Witness group. They refused to pay development levies or participate in the sanitation exercise in their community, on the grounds that their religion forbade them. The leaders of their community threatened to prosecute them. They brought this action. The High Court dismissed the case on the grounds that they cannot on religious grounds object to practices that are for the benefit of the community. They appealed to the Court of Appeal. The Court of Appeal held that they were entitled to object on the grounds of thought, conscience and religion.

Similarly, in **AGBAI V OKAGBUE**, the plaintiff refused to join his age grade because he was Jehovah Witness, the court held that he was entitled to do so as a conscientious objector. The law therefore recognizes the right of everyone to thought or conscience.

THE QUESTION OF CONSCIENTIOUS OBJECTION FOR CHILDREN

In **ESABUNOR V FAWEYA** the appellant withheld consent to transfuse her sick child with blood based on her religion (Jehovah Witness). The doctor in charge complained to the Police. The Police got an order from a Magistrate Court to transfuse the child with blood. The child was transfused with blood and the child survived. The appellant brought this action claiming 15 million Naira as compensation for wrongfully transfusing blood to her child without her consent. The High Court dismissed the case. She appealed to the Court of Appeal. The Court of Appeal held that the parent of the child had no right to determine the fate of the child in these circumstances. Her appeal was dismissed.

FREEDOM OF RELIGION

In Nigeria, the constitution guarantees the right of every citizen to his religion. No citizen shall be compelled to follow another religion. In the case of **JENUBU OYONYE V ADEGBIJU** the appellant was a native of Adoka in Benue State. She was required to participate in the burial rituals of her late husband. She refused on the grounds of her Christian faith. The court held that it amounted to a violation of her fundamental rights to freedom to religion guaranteed by **section 35 of the 1979 constitution (Which is equivalent to section 38 of the 1999 Constitution)** for her relatives to compel her to buy and sacrifice goats. In **ADAMU V ATTORNEY GENERAL OF BORNO STATE**, The appellants were a group of parents who had to pay teachers to teach their children Christian religious knowledge in government secondary schools in which the government paid teachers to teach Islamic religious knowledge. The Court of Appeal held that it was a breach of the children's rights to freedom from discrimination and religion under **sections 42(1) and 38(1) of the constitution of Nigeria 1999**

FREEDOM TO CHANGE RELIGION OR BELIEF

A very important aspect of the right to freedom of thought, conscience and religion is the right to change religion. Where there are legal obstacles to changing religion this right is violated. In the Malaysian case of In **LINA JOY V. MAJLIS AGAMA AND OTHERS** the appellant was born a Muslim. At the age of 33 she converted to Christianity. She applied to the authorities for a change of name, and religion in her national identity card and she was denied. She went to court. The trial court dismissed her claim. She appealed and her appeal was dismissed. Nevertheless, **Justice Richard Malanjum** in his dissenting judgment stated that the action of the authorities was a violation of her right to freedom of religion.

FREEDOM TO MANIFEST AND PROPAGATE RELIGION

Another aspect of the right to Freedom of Thought, Conscience and Religion is the right to manifest and propagate religion or belief. This right includes among others things the right to practice, preach and advertise one's religion. However, where the manifestation and propagation of a religion would adversely affect public policy, the court would not uphold it. In the case of **OJEIGBE UBANI V. FEDERAL ELECTORAL COMMISSION**, the appellant a member of the Seventh Day Adventist group who was contesting for local government position argued that fixing election on Saturday was a violation of his right to Freedom of Thought, Conscience and Religion and that it was responsible for his losing the votes of 7,000 of his supporters who were Adventist. The court ruled that fixing the election on a Saturday was not a violation of his fundamental right to religion and that going by the margin by which he lost the election, the 7,000 Adventist votes was insignificant.

In the cases of **Provost Kwara State College of Education, Ilorin & 2 Ors v. Bashirat Saliu & 2 Others and Asiyah & ors v. LASG & Others** the court of appeal declared that the use of Hijab by Female Muslim students constitute an act of worship, hence the refusal to allow the appellants wear it on their uniform is a clear infraction of their right. Similarly in the Case of **MISS ASIAT ABDULKAREEM and one other V LAGOS STATE GOVERNMENT and 2 others**

The court of appeal held that the prevention of children from using hijab in primary schools was a violation of their right to religion.

Section 38(2) provides that:

“No person attending any place of education shall be required to receive religious instruction or to take part in or attend any religious ceremony or observance if such instruction ceremony or observance relates to a religion other than his own, or religion not approved by his parent or guardian”.

This is a controversial provision of the constitution because in the case of **ADEWOLE V JAKANDE** it was held that the constitutional right to Freedom of Association includes a right to establish private schools. Therefore, if the establishment of private schools is part of the right to freedom of association then the establishment of faith based schools is part of the right to freedom of association. This is particularly in the light of the fact that section **38(3) of the 1999 Constitution** endorses Faith based schools by its provision that:

“No religious community or denomination shall be prevented from providing religious instruction for pupils of that community or denomination in any place of education maintained wholly by that community or denomination”.

THE QUESTION OF STATE RELIGION IN NIGERIA

Section 10 of the Constitution of Nigeria 1999 provides that: “The Government of the Federation or of a State shall not adopt any religion as State Religion.” This section categorically prohibits

any state or federal government from adopting a state or national religion. The implication of this is that Nigeria is a secular state like Great Britain, France, etc. The implication of **section 10 of the Constitution** is that neither the legislative or executive power shall be used to advance or foster any religion both at the federal and state levels.

In practice this is not the case in Nigeria. Religion is highly embellished in our public life. Nigeria has an observer status with the organization of Islamic States. Nigeria also established a National Mosque and a National Church in its Federal Capital. Islamic Civil law is recognized as part of our customary law system. Several Northern states in Nigeria introduced and practice the Sharia criminal system. It is therefore, safe to conclude that in theory Nigeria is a secular state but in practice there is a strong element of religiousness in our national structure.

EXCEPTIONS TO THE RIGHT TO FREEDOM OF THOUGHT, CONSCIENCE AND RELIGION

Section 38(4) of the Constitution of Nigeria 1999 provides that: “Nothing in this section shall entitle any person to form, take part in the activity or be a member of a secret society.” This implies that the right to Freedom of Thought, Conscience and Religion cannot be used to justify the establishing or joining or participating in any secret society. **Section 318(1) of the 1999 Constitution** defines secret society as:

“Secret society” includes any society, association, group or body of persons (whether registered or not):

- (a) that uses secret signs, oaths, rites or symbols and which is formed to promote a cause, the purpose or part of the purpose of which is to foster the interest of its members and to aid one another under any circumstances without due regard to merit, fair play or justice to the detriment of the legitimate interest of those who are not members;
- (b) the membership of which is incompatible with the function or dignity of any public office under this Constitution and whose members are sworn to observe oaths of secrecy; or
- (c) the activities of which are not known to the public at large, the names of whose members are kept secret and whose meetings and other activities are held in secret”.

In the Case of **AWONIYI V. REGISTERED TRUSTEES OF THE ROSICRUCIAN ORDER OF AMORC (NIGERIA)**, the appellant published an article in the bulletin of the Evangelical Church of West Africa in which it described the respondent as a “satanic and sinister organization.” The respondent filed a law suit against the appellant and the Evangelical Church of West Africa for libel. The appellant pleaded the defense of justification on the grounds that the publication was true since the respondent was a secret society as defined in the constitution. The High Court ruled in favour of the respondent and awarded damages against the appellant for defamation. The appellant appealed to the supreme Court. The Supreme Court in 1994 overturned the judgment of the High Court by ruling that the respondent was a secret society.